

MASTER SERVICES AGREEMENT

This Master Services Agreement (this "**Agreement**") is entered into as of **[Date]** (the "**Effective Date**"), by and between **[Provider Name]**, a [State/Country] [Entity Type] with a principal place of business at [Provider Address] ("**Provider**"), and **[Client Name]**, a [State/Country] [Entity Type] with a principal place of business at [Client Address] ("**Client**"). Provider and Client may each be referred to herein as a "**Party**" and collectively as the "**Parties**."

RECITALS

WHEREAS, Provider is in the business of providing [Description of Core Services];

WHEREAS, Client desires to engage Provider to provide certain services to Client, and Provider is willing to provide such services, subject to the terms and conditions set forth herein;

NOW, THEREFORE, in consideration of the mutual covenants and agreements hereinafter set forth, the Parties agree as follows:

1. SCOPE OF SERVICES

1.1. Statements of Work. Provider shall provide the services described in one or more statements of work (each, a "**Statement of Work**" or "**SOW**") executed by both Parties (the "**Services**"). Each SOW will be deemed a part of this Agreement. In the event of a conflict between the terms of this Agreement and any SOW, the terms of this Agreement shall prevail unless the SOW explicitly states an intent to override a specific provision of this Agreement.

1.2. Performance Standard. Provider represents and warrants that it will perform the Services in a timely, professional, and workmanlike manner, in accordance with industry standards and the specifications outlined in the applicable SOW.

1.3. Subcontractors. Provider may not engage subcontractors to perform any of its obligations under this Agreement without the prior written consent of Client. Provider remains fully responsible for the performance of any such subcontractors.

2. FEES AND PAYMENT TERMS

2.1. Fees. Client shall pay Provider the fees set forth in the applicable SOW ("**Fees**"). Unless otherwise specified in a SOW, all Fees are stated in United States Dollars.

2.2. Invoicing and Payment. Provider shall invoice Client in accordance with the schedule set forth in the applicable SOW. Client shall pay all undisputed amounts due within [**Thirty (30)**] days of receipt of Provider's invoice.

2.3. Late Payments. If Client fails to pay any undisputed amounts when due, Provider may charge interest on the past due amount at a rate of 1.5% per month, or the maximum rate permitted by law, whichever is lower.

2.4. Taxes. Client shall be responsible for all sales, use, and excise taxes, and any other similar taxes, duties, and charges of any kind imposed by any federal, state, or local governmental entity on any amounts payable by Client hereunder, excluding any taxes based on Provider's net income.

3. TERM AND TERMINATION

3.1. Term. The term of this Agreement shall commence on the Effective Date and shall continue until terminated by either Party in accordance with this Section 3 (the "**Term**").

3.2. Termination for Convenience. Either Party may terminate this Agreement or any individual SOW at any time, without cause, upon [**Thirty (30)**] days prior written notice to the other Party.

3.3. Termination for Cause. Either Party may terminate this Agreement immediately upon written notice to the other Party if the other Party materially breaches this Agreement and fails to cure such breach within [**Fifteen (15)**] days after receiving written notice of the breach.

3.4. Effect of Termination. Upon termination of this Agreement or any SOW, Client shall pay Provider for all Services performed and expenses incurred up to the effective date of termination. Termination of this Agreement will automatically terminate all active SOWs.

4. CONFIDENTIALITY

4.1. Definition. "**Confidential Information**" means any non-public information disclosed by one Party (the "**Disclosing Party**") to the other Party (the "**Receiving Party**"), whether orally or in writing, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure.

4.2. Protection. The Receiving Party agrees to maintain the confidentiality of the Disclosing Party's Confidential Information, using at least the same degree of care it uses to protect its own confidential information, but in no event less than a reasonable degree of care. The Receiving Party shall not disclose the Confidential Information to any third party without the prior written consent of the Disclosing Party.

5. INTELLECTUAL PROPERTY

5.1. Client Materials. Client retains all right, title, and interest in any materials provided by Client to Provider for use in connection with the Services ("**Client Materials**"). Client grants Provider a limited, non-exclusive license to use the Client Materials solely for the purpose of providing the Services.

5.2. Work Product. Unless otherwise specified in a SOW, all deliverables, designs, reports, code, and other materials developed by Provider specifically for Client as part of the Services (collectively, "**Work Product**") shall be considered "work made for hire," and Client shall own all right, title, and interest, including all intellectual property rights, in and to such Work Product.

5.3. Provider Pre-Existing IP. Provider retains all right, title, and interest in any intellectual property developed prior to or independently of this Agreement ("**Pre-Existing IP**"). To the extent Pre-Existing IP is incorporated into any Work Product, Provider grants Client a perpetual, irrevocable, worldwide, royalty-free license to use such Pre-Existing IP as necessary to fully utilize the Work Product.

6. LIMITATION OF LIABILITY

6.1. Exclusion of Damages. IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER PARTY FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, OR EXEMPLARY DAMAGES (INCLUDING LOST PROFITS), ARISING OUT OF OR RELATING TO THIS AGREEMENT, EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

6.2. Liability Cap. EXCEPT FOR BREACHES OF CONFIDENTIALITY OR INDEMNIFICATION OBLIGATIONS, THE TOTAL AGGREGATE LIABILITY OF EITHER PARTY ARISING OUT OF OR RELATED TO THIS AGREEMENT SHALL NOT EXCEED THE TOTAL FEES PAID OR PAYABLE BY CLIENT TO PROVIDER IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

7. MISCELLANEOUS

7.1. Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of **[State]**, without regard to its conflict of laws principles.

7.2. Independent Contractor. The relationship between the Parties is that of independent contractors. Nothing contained in this Agreement shall be construed as creating any agency, partnership, joint venture, or other form of joint enterprise between the Parties.

7.3. Notices. All notices, requests, consents, and other communications under this Agreement must be in writing and addressed to the Parties at the addresses set forth in the preamble.

7.4. Severability. If any provision of this Agreement is held to be invalid, illegal, or unenforceable, the remaining provisions of this Agreement shall remain in full force and effect.

7.5. Entire Agreement. This Agreement, including all applicable SOWs, constitutes the entire agreement between the Parties regarding the subject matter hereof and supersedes all prior agreements, understandings, and negotiations, both written and oral.

CLIENT:

[Client Name]

By: _____
Name: _____
Title: _____
Date: _____

PROVIDER:

[Provider Name]

By: _____
Name: _____
Title: _____
Date: _____